

**Tentative Rulings
September 11, 2026
Department 42**

Tentative Rulings for Guardianship cases can be found in the link titled, “Department Guardianships - Tentative Rulings.”

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

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Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to speaking with the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

1:30 p.m. – Special Set Law & Motion and Case Management Conference

SIERRA PACIFIC WAGE AND HOUR CASES

Case Number: 5235

Tentative Ruling on Motion for Decertification:

Sierra Pacific Industries moves for decertification of six of the eight classes certified on November 21, 2022. Plaintiffs oppose the motion.

As a preliminary matter, one of the arguments advanced by SPI for decertification is the lack of a trial plan. After filing this motion, SPI filed a Motion for an Order Compelling a Trial Plan which was heard on July 27, 2026. Because that motion has already been heard and a schedule for the trial plan has been ordered, the Court considers that issue to be moot.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of A) excerpts from the DLSE Enforcement Policies and Interpretations Manual, B) DLSE Opinion Letter 2002.20.22, and C) DLSE Opinion Letter 1986.01.03. No objections have been raised. The request is granted pursuant to Evid. Code §§ 452(c), (g) and (h) and 453.

Merits.

A party may file a motion to decertify a class. CRC 3.764(a)(4). The timing for service of the papers is set forth in CRC 3.764(c)(1). The Court notes that both the Opposition and Reply were filed in accordance with CCP § 1005(b) rather than the 20 and 11 calendar days prescribed by CRC 3.764(c)(1). However, as neither party took issue with this, the Court will issue a ruling on the merits.

The specific classes that SPI seeks to decertify are:

- (1) Horn Schedule Short Rest Period Class
- (2) Horn Schedule Short First Meal Period Class
- (3) Horn Schedule Unpaid Wages Class
- (4) Second Meal Period Waiver Class
- (5) Wage Statement Class
- (6) Waiting Time Penalty Class.

A class action permits persons to sue on behalf of others where it is shown to be necessary and superior to separate lawsuits by or against members of the group individually. CCP § 382 provides authority for class actions: “[W]hen the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court, one or more may sue or defend for the benefit of all.” To maintain a class action, certain prerequisite conditions must exist, and the action must be based on one or more permissible grounds.

“It is well established that the two basic requirements necessary to sustain a class action are the existence of an ascertainable class and a well-defined community of interest in the questions of law and fact involved. *Occidental Land, Inc. v. Superior Court of Orange County* (1976) 18 Cal. 3d 355, 360. With respect to the community of interest requirement, three separate factors are considered: 1) predominant common questions of law or fact; 2) class representative whose claims or defenses are typical of the class; and 3) class representatives who can adequately represent the class. *Sav-On Drug Stores, Inc. v. Superior Ct.* (2004) 34 Cal. 4th 319, 326. “A court must examine the allegations of the complaint and supporting declarations and consider whether the legal and factual issues they present are such that their resolution in a single class proceeding would be both desirable and feasible.” *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal. 4th 1004, 1021-1022 “[T]rial courts are not obligated as a matter of law to resolve threshold disputes over the elements of a plaintiff’s claims, unless a particular determination is necessarily dispositive of the certification question.” *Id.* at 1017. “The certification question is ‘essentially a procedural one that does not ask whether an action is legally or factually meritorious.’ ” (*Sav-On Drug Stores, Inc. v. Superior Court, supra*, 34 Cal.4th at p. 326, quoting *Linder v. Thrifty Oil Co.* (2000) 23 Cal. 4th 429, 439-440.

Ascertainability is not challenged in this motion. The community of interest requirement is not challenged on the basis of whether there is an adequate class representative. Therefore, those issues need not be addressed. To have predominant common questions between the class members, each member must not be required to individually litigate numerous and substantial questions to determine his or her right to recover following the class judgment, and the issues which may be jointly tried, when compared with those requiring separate adjudication, must be sufficiently numerous and substantial to make the class action advantageous to the judicial process and to the litigants. *Washington Mut. Bank, FA v. Sup.Ct. (Briseno)* (2001) 24 Cal. 4th 906, 913-914.

SPI contends that there has been change in both law and circumstance that now warrants the Court decertifying six of the eight classes. The change in law is based on *Bradsbery v. Vicar Operating, Inc.* (2025) 110 Cal. App. 5th 899 which was decided after the classes were certified. The change in circumstance is the emergence of Plaintiffs' walking time theory.

Second Meal Period Waiver Class. When ruling on class certification, the Court specifically ruled as follows:

The Second Meal Period Waiver class also presents a predominate question of law and fact. The issues presented here are whether the second meal period waivers are lawful, whether they were signed voluntarily, and if lawful and voluntary, whether SPI provided an opportunity for employees to take a second meal period if they chose to so do. Plaintiffs have presented evidence that the Second Meal Period Waivers are signed by all new employees or employees when they change job classification, that the horn schedules at the Richfield and Red Bluff facilities do not include the sounding of the horn for a second meal period, and that the timecards did not have a space for recording a second meal period. Although the exact language of the waiver has changed from time to time, the bulk of it has remained the same. Accordingly, the Second Meal Period is appropriate for certification.

Bradsbery decided the narrow issue that meal periods may be mutually waived by an employer and employee prospectively in writing consistent with *Labor Code section 512*. The Second Appellate District affirmed the trial court's granting of the employer's motion for summary adjudication in concluding that the revocable, prospective waivers signed by the plaintiff employees were enforceable. In its decision, the Appellate Court expressly noted that there was no evidence that the waivers were unconscionable or unduly coercive and no argument or facts were presented to suggest that the waivers impeded or discouraged the workers from taking meal breaks. (*Bradsbery*, 904, 918) There is no question that *Bradsbery* is a case of first impression published after this Court's ruling certifying the Second Meal Period Waiver Class. But *Bradsbery* is distinguishable from the factual allegations in this case. Here, Plaintiffs contend that the waivers were not actually voluntary and could not reasonably be revoked. Plaintiffs point to the fact that the waivers were not standalone. The June 2012 version includes only a waiver of the second meal period that is in the middle of the form titled Meal and Rest Period Acknowledgment. There is not a way to sign the acknowledgment without also agreeing to a second meal period waiver unless the employee chooses to modify the form presented. The April 2016 version waives both the first and second meal period. The same issue is present. The waiver is part of a larger form regarding acknowledgement. The waiver is not a standalone document that can easily be accepted or rejected. Whether the format and presentation of the waivers show that signing was voluntary is a common question. Given the format of the horn schedules, whether those subject to the horn schedules could reasonably be given the opportunity to take a second meal period is also a common question as there is no horn for a second meal period. If there is no horn and production does not stop, an argument can be made that an employee does not have reasonable ability to revoke the second meal period waiver for any particular shift. This is not an individualized inquiry given the lack of second meal periods noted in the timekeeping records. The Second Meal Period Class, while no longer having the common question of whether the waivers can be lawful, still presents common questions regarding the voluntariness of the waivers and whether there is the opportunity to take a second meal period. The Appellate Court in *Bradsbery* expressly stated that they were not presented with such factual allegations and arguments,

As stated, Plaintiffs make no argument the prospective waivers in this case are unconscionable or that they have the effect of impeding or discouraging workers from taking the meal periods to which they are entitled. Nor do they argue that they unknowingly signed the waivers, that Vicar coerced them into signing the waivers because it had greater bargaining power, or that they could not freely revoke the waivers at any time. We would have serious reservations regarding the validity of prospective written waivers of meal periods under such circumstances but the present case does not present them, and we need not reach these issues here.

The holding in *Bradsbery* does not change the predominant common questions of law and fact as identified in the Court's Order certifying the class. It also does not appear that SPI would be prevented from litigating any affirmative defense.

Horn Schedule Classes. In addition to *Bradsbery*, each of these classes is also challenged based on SPI's argument that the walking time theory is a new theory (not presented at the time of certification) and therefore individualized issues now predominate. SPI contends that the walking time theory is being presented following class certification as demonstrated by Plaintiffs propounding of discovery and indication that a motion for summary judgment would be filed on the basis that net rest was not provided due to the time it takes to walk from the workstations to a suitable place for rest. In ruling on the horn schedule classes, the Court noted that the predominant common question related to the horn or bell that sounded two minutes prior to the beginning of a shift, two minutes prior to the end of a meal period, and two minutes prior to the end of a rest break. Plaintiffs argued that this interrupted the meal period or rest break making the employee not free from duty for the required amount of time. Plaintiffs, at the time of class certification, alleged that the horn schedule deprived employees of their required duty-free periods of net rest. (Pgs. 5-10 of Motion for Class Certification) Plaintiffs alleged that employees had to walk different distances back to their individual workstations and were required to perform different pre-work donning and doffing or preparation during those two-minute increments of time. These differing tasks are demonstrated by the many footnotes representing individual employee's declaratory statements at pages 5-7 of Plaintiffs Motion for Class Certification. These footnotes document that Plaintiffs allegations that the two-minute warning horn interrupted the employees' rest or meal period is not a new argument or allegation regardless of whether the employee was walking to their workstation, donning and doffing or performing job duties during the two minute period. Differing individual employee walk times from the workstation to a suitable place of rest does not negate the common question of whether a horn sounding two minutes prior to rest break or meal period ending interrupts that break or otherwise asserts employer control. It also does not negate that the horn schedule classes are based on an alleged impediment to an employee having the ability to take the required amount of net rest.

SPI's cited authority, *Dailey v. Sears, Roebuck & Co.* (2013) 214 Cal. App. 4th 974 is not persuasive where *Dailey* involved the alleged misclassification of managers and assistant managers as exempt employees. In *Dailey*, the evidence failed to demonstrate any policy or widespread practice of Sears to deprive nonexempt employees of uninterrupted meal period or rest breaks. Here, Plaintiffs contend that all class members were subject to the employer's policy and practice which resulted in their meal and rest periods being interrupted by the employer's horn schedule. *Duran v. U.S. Bank National Assn.* (2014) 59 Cal. 4th 1 is also distinguishable from the present case as it also involved the misclassification of employees. In *Duran*, the Appellate Court held, "For purposes of class action manageability, a defense that hinges liability *vel non* on consideration of numerous intricately detailed factual questions, as is sometimes the case in misclassification suits, is different from a defense that raises only one or a few questions and that operates not to extinguish the defendant's liability but only to diminish the amount of a given plaintiff's recovery." (citations omitted)

Many of the individualized issues asserted by SPI are the same individual issues argued at the time of certification and do not present a new theory by Plaintiffs. It is not yet clear how or if Plaintiffs will present the walking time theory as the Trial Plan is not due yet. Based on what is presently before the Court, it appears that these classes still present predominate common questions.

Derivative Classes. Both parties agree that the Wage Statement Class and Waiting Time Penalty Class are derivative. The Court notes that even if SPI had been successful in decertifying the Second Meal Period Waiver and Horn Schedule classes, the Unpaid Overtime Class would still remain which would form the basis for the derivative classes.

In summary, while *Bradsbery* presents a change in the law, it does not negate that the Second Meal Period Wavier Class which is still suitable for class treatment due to the remaining common issues. The Court also concludes that any potential change in theory on the Horn Schedule Classes does not warrant decertification. It also does not appear that SPI would be prevented from litigating any affirmative defense. The motion is **DENIED**. SPI provided a proposed Order that will be modified to reflect the Court's ruling.

Tentative Ruling on Case Management Conference: This Case Management Conference addresses both the *McDonald* and *Smith* matters. Case Management Conference Statements were filed by Plaintiff Smith and Plaintiff McDonald.

***Smith* Matter.** The *Smith* matter is not presently set for trial. There are no motions calendared. In their Case Management Conference Statement filed August 28, 2026, Plaintiffs indicated that the parties are engaged in negotiations to resolve Plaintiffs' claims on an individual basis.

***McDonald* Matter.** Trial is calendared for June 1, 2027. Plaintiffs' Motion for Summary Adjudication is calendared for November 9, 2026 at 1:30 p.m.

The Court intends to set a further Case Management Conference. Case Management Conference Statements are to be filed no less than five court days prior to the hearing.